

**THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.**

## UTAH UNINSURED MOTORISTS COVERAGE

For a covered "auto" licensed or principally garaged in, or "auto dealer operations" conducted in, Utah, this endorsement modifies insurance provided under the following:

AUTO DEALERS COVERAGE FORM  
BUSINESS AUTO COVERAGE FORM  
MOTOR CARRIER COVERAGE FORM

With respect to coverage provided by this endorsement, the provisions of the Coverage Form apply unless modified by the endorsement.

This endorsement changes the Policy effective on the inception date of the Policy unless another date is indicated below.

**Named Insured:** ACME TRUCKING LLC

**Endorsement Effective Date:** 01/15/2026

### SCHEDULE

**Limit Of Insurance: \$**

**Each "Accident"**

Information required to complete this Schedule, if not shown above, will be shown in the Declarations.

#### A. Coverage

1. We will pay all sums the "insured" is legally entitled to recover as compensatory damages from the owner or driver of an "uninsured motor vehicle". The damages must result from "bodily injury" sustained by the "insured" caused by an "accident". The owner's or driver's liability for these damages must result from the ownership, maintenance or use of the "uninsured motor vehicle".
2. We will pay only after all liability bonds or policies have been exhausted by payment of judgments or settlements; or
3. Any judgment for damages arising out of a "suit" brought without our written consent is not binding on us.

#### B. Who Is An Insured

If the Named Insured is designated in the Declarations as:

1. An individual, then the following are "insureds":
  - a. The Named Insured and any "family members".

- b. Anyone else "occupying" a covered "auto" or a temporary substitute for a covered "auto", except the Named Insured's customers, if that Named Insured's business is shown in the Declarations as a rental company. However, if the customer of a rental company has no policy of motor vehicle insurance, they are insured, but only up to:

- (1) \$90,000 for each "accident", which is the minimum combined single limit of liability; or
- (2) \$30,000/\$65,000 for each "accident", which is the minimum split limits of liability;

specified by UTAH CODE ANN. Section 31A-22-304. This supersedes any provision to the contrary. If the "auto" is a temporary substitute, the covered "auto" must be out of service because of its breakdown, repair, servicing, "loss" or destruction.

Rental company means any person or organization in the business of providing private passenger motor vehicles to the public under the terms of a rental agreement.

- c. Anyone for damages he or she is entitled to recover because of "bodily injury" sustained by another "insured".
- 2. A partnership, limited liability company, corporation or any other form of organization, then the following are "insureds":
  - a. Anyone "occupying" a covered "auto" or a temporary substitute for a covered "auto", except the Named Insured's customers, if that Named Insured's business is shown in the Declarations as a rental company. However, if the customer of a rental company has no policy of motor vehicle insurance, they are insured, but only up to:
    - (1) \$90,000 for each "accident", which is the minimum combined single limit of liability; or
    - (2) \$30,000/\$65,000 for each "accident", which is the minimum split limits of liability;

specified by UTAH CODE ANN. Section 31A-22-304. This supersedes any provision to the contrary. If the "auto" is a temporary substitute, the covered "auto" must be out of service because of its breakdown, repair, servicing, "loss" or destruction.

Rental company means any person or organization in the business of providing private passenger motor vehicles to the public under the terms of a rental agreement.

- b. Anyone for damages he or she is entitled to recover because of "bodily injury" sustained by another "insured".

### C. Exclusions

This insurance does not apply to any of the following:

- 1. Any claim settled without our consent.
- 2. The direct or indirect benefit of any insurer or self-insurer under any workers' compensation, disability benefits or similar law.
- 3. "Bodily injury" sustained by:
  - a. An individual Named Insured while "occupying" or when struck by any vehicle owned by that Named Insured that is not a covered "auto" for Uninsured Motorists Coverage under this Coverage Form;

- b. Any "family member" while "occupying" or when struck by any vehicle owned by that "family member" that is not a covered "auto" for Uninsured Motorists Coverage under this Coverage Form; or

- c. Any "family member" while "occupying" or when struck by any vehicle owned by the Named Insured that is insured for Uninsured Motorists Coverage on a primary basis under any other Coverage Form or policy.

### 4. Anyone:

- a. Using a vehicle without a reasonable belief that the person is entitled to do so;
- b. Who, as a passenger in a vehicle, has knowledge that the vehicle is being operated in violation of UTAH CODE ANN. Section 41-1a-1314; or
- c. While committing a felony.

However, Exclusion C.4. does not apply to the following:

- a. An "insured" under 18 years of age, but coverage is limited to medical and funeral expenses.
- b. An "insured" who is a law enforcement officer, as defined in UTAH CODE ANN. Section 53-13-103, who is injured within the course and scope of the law enforcement officer's duties.

### 5. Punitive or exemplary damages.

### 6. "Bodily injury" arising directly or indirectly out of:

- a. War, including undeclared or civil war;
- b. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
- c. Insurrection, rebellion, revolution, usurped power or action taken by governmental authority in hindering or defending against any of these.

### D. Limit Of Insurance

- 1. Regardless of the number of covered "autos", "insureds", premiums paid, claims made or vehicles involved in the "accident", the most we will pay for all damages resulting from any one "accident" is the Limit Of Insurance for Uninsured Motorists Coverage shown in the Schedule or Declarations.

2. No one will be entitled to receive duplicate payments for the same elements of "loss" under this Coverage Form and any Liability Coverage form, Medical Payments Coverage endorsement or Underinsured Motorists Coverage endorsement attached to this Coverage Part.

We will not make a duplicate payment under this coverage for any element of "loss" for which payment has been made by or for anyone who is legally responsible, except for any portion of such payment that a person is not entitled to receive pursuant to UTAH CODE ANN. Section 34A-2-106(5).

We will not pay for any element of "loss" if a person is entitled to receive payment for the same element of "loss" under any workers' compensation, disability benefits or similar law.

#### E. Changes In Conditions

The **Conditions** are changed for Uninsured Motorists Coverage as follows:

1. **Other Insurance** in the Auto Dealers and Business Auto Coverage Forms and **Other Insurance – Primary And Excess Insurance Provisions** in the Motor Carrier Coverage Form are replaced by the following:

If there is other applicable insurance available under one or more policies or provisions of coverage:

- a. The maximum recovery under all Coverage Forms or policies combined may equal but not exceed the highest applicable limit for any one vehicle under any Coverage Form or policy providing coverage on either a primary or excess basis. However, the maximum recovery for damages sustained by an individual Named Insured or any "family member":

- (1) While "occupying" an "auto" such Named Insured does not own, not lease, or that is not furnished, under all Coverage Forms or policies combined may equal but not exceed the sum of:

- (a) The limit of liability for Uninsured Motorists Coverage applicable to the "auto" such Named Insured or any "family member" was "occupying" at the time of the "accident"; and
- (b) The highest applicable limit of liability for Uninsured Motorists Coverage under any Coverage Form or policy that provides coverage for such Named Insured or any "family member".

- (2) While not "occupying" an "auto", under all Coverage Forms or policies combined may equal but not exceed the sum of the highest applicable limit of liability for Uninsured Motorists Coverage under any two Coverage Forms or policies that provide coverage for such Named Insured or any "family member".

- b. Any insurance we provide with respect to a vehicle the Named Insured does not own shall be excess over any other collectible uninsured motorists insurance providing coverage on a primary basis.

- c. If the coverage under this Coverage Form is provided:

- (1) On a primary basis, we will pay only our share of the loss that must be paid under insurance providing coverage on a primary basis. Our share is the proportion that our limit of liability bears to the total of all applicable limits of liability for coverage on a primary basis.

- (2) On an excess basis, we will pay only our share of the loss that must be paid under insurance providing coverage on an excess basis. Our share is the proportion that our limit of liability bears to the total of all applicable limits of liability for coverage on an excess basis.

2. **Duties In The Event Of Accident, Claim, Suit Or Loss** in the Business Auto and Motor Carrier Coverage Forms and **Duties In The Event Of Accident, Claim, Offense, Suit, Loss Or Acts, Errors Or Omissions** in the Auto Dealers Coverage Form are changed by adding the following:

- a. Promptly notify the police if a hit-and-run driver is involved; and
- b. Promptly send us copies of the legal papers if a "suit" is brought.

3. **Transfer Of Rights Of Recovery Against Others To Us** is changed by adding the following:

- a. We shall be entitled to a recovery only after the "insured" has been fully compensated for damages.
- b. If we make any payment and the "insured" recovers from another party, the "insured" shall hold the proceeds in trust for us and pay us back the amount we have paid.

#### 4. Arbitration

- a. If we and an "insured" disagree whether the "insured" is legally entitled to recover damages from the owner or driver of an "uninsured motor vehicle" or do not agree as to the amount of damages that are recoverable by that "insured", then the matter may be arbitrated. However, disputes concerning coverage under this endorsement may not be arbitrated. Either party may make a written demand for arbitration. In this event, unless otherwise agreed to in writing, we and the "insured" shall agree on the selection of a single arbitrator. If we and the "insured" are unable to agree on the selection of a single arbitrator, each party will select an arbitrator. The two arbitrators will select a third. If the two arbitrators are unable to agree on the selection of the third arbitrator within 30 days, either may request that selection be made by a judge of a court having jurisdiction. Each party will bear the expenses for a single arbitrator equally or pay the expenses for the arbitrator each party selects and bear the expenses of the third arbitrator equally.
- b. If an "insured" submits a claim for Uninsured Motorists Coverage to arbitration, that "insured" shall provide to us within 30 days:
  - (1) A written demand for payment setting forth the specific monetary amount of the demand, including a computation of that "insured's" claimed past medical expenses, claimed past lost wages, and other claimed past economic damages required by UTAH CODE ANN. Section 31A-22-305; and
  - (2) Any written statements under oath, documents and signed authorizations required by UTAH CODE ANN. Section 31A-22-305.
- c. Subject to our receipt of items **b.(1)** and **b.(2)** described above, we shall, within 60 days:
  - (1) Provide a written response to the "insured's" written demand for payment; and
  - (2) Tender the amount, if any, that we determine as owed to that "insured" less any state or federal statutory liens as provided by UTAH CODE ANN. Section 31A-22-305.

If the amount tendered by us is the Limit of Insurance for Uninsured Motorists Coverage, such amount shall be accepted by that "insured".

If the amount tendered by us is less than the Limit of Insurance for Uninsured Motorists Coverage, the "insured" may accept the amount tendered as full payment of such "insured's" claim or accept the amount tendered as partial payment and continue to arbitrate the remaining claim.

- d. If the final award obtained through arbitration is greater than the average of the "insured's" initial written demand for payment and our initial written response, then we shall pay:
  - (1) The final award obtained through arbitration less any amount accepted as partial payment. If the award exceeds the Limit of Insurance for Uninsured Motorists Coverage by more than \$15,000, we shall pay \$15,000, in addition to the Limit of Insurance for Uninsured Motorists Coverage;
  - (2) Any costs as set forth in the Utah Rules of Civil Procedure;
  - (3) Arbitration fees; and
  - (4) Reasonable costs for witnesses and depositions.

If the "insured" does not disclose all material information required by UTAH CODE ANN. Section 31A-22-305 within 30 days after submitting a claim for Uninsured Motorists Coverage to arbitration, the "insured" may not recover costs or amounts in excess of the Limit of Insurance.

The "insured" shall provide an affidavit of costs within five days of an arbitration award. If we object to such costs, the costs shall be arbitrated, and such award may not exceed \$5,000.

- e. The written demand requirement in item **b.(1)** described above does not affect the "insured's" requirement to provide a computation of any other economic damages claimed, and we may, within a reasonable time after receipt of such computation, conduct fact and expert discovery as to any additional damages claimed.

- f. Unless both parties agree otherwise, arbitration will take place in the county in which the "insured" lives. Local rules of law as to arbitration procedure and evidence will apply. A written decision agreed to by the single arbitrator or agreed to by two of the arbitrators will be binding, unless either party demands a trial. This demand must be made within 20 days of service of the arbitration award. If this demand is not made, the amount of damages agreed to by the arbitrators will be binding.

However, this condition does not apply if a small claims court having jurisdiction resolves the matter or matters upon which we and an "insured" do not agree.

#### **F. Additional Definitions**

As used in this endorsement:

1. "Family member" means:
    - a. A person related to an individual Named Insured by blood, marriage, adoption or guardianship, who is a resident of such Named Insured's household, whether or not temporarily residing elsewhere; and
    - b. An individual Named Insured's dependent minor children.
  2. "Occupying" means in, upon, using, getting in, on, out or off.
  3. "Uninsured motor vehicle" means a land motor vehicle or "trailer":
    - a. For which no liability bond or policy at the time of an "accident" provides at least \$90,000 for each "accident", which is the minimum combined single limit of liability, or \$30,000/\$65,000 for each "accident", which is the minimum split limits of liability, specified by UTAH CODE ANN. Section 31A-22-304.
    - b. For which an insuring or bonding company:
      - (1) Denies coverage;
      - (2) Is or becomes insolvent; or
      - (3) Fails to confirm coverage within 60 days from the date such company receives notification of a claim by or on behalf of the "insured".
- c. For which neither the operator nor owner can be identified and that hits or that causes an "accident" resulting in "bodily injury" without hitting:
- (1) An individual Named Insured or any "family member";
  - (2) A vehicle that such Named Insured or any "family member" is "occupying"; or
  - (3) The Named Insured's covered "auto".
- If there is no physical contact with such vehicle or "trailer", the facts of the "accident" must be proved. We will only accept clear and convincing evidence, which must consist of more than the "insured's" testimony.

However, "uninsured motor vehicle" does not include any vehicle:

- a. Owned or operated by a self-insurer under any applicable motor vehicle law, other than Utah motor vehicle law, except a self-insurer who is or becomes insolvent and cannot provide the amounts required by that motor vehicle law;
- b. Owned or operated by a self-insurer under Utah motor vehicle law, except a self-insurer who is or becomes insolvent and cannot provide the applicable minimum limit for "bodily injury" liability specified by UTAH CODE ANN. Section 31A-22-304. The applicable minimum limit is:
  - (1) \$90,000 for each "accident", if the limit of liability is a single limit that applies for each "accident"; or
  - (2) \$30,000 for each person/\$65,000 for each "accident", if the limit of liability is indicated as a split limit;
- c. Owned by a governmental unit or agency;
- d. Designed for use mainly off public roads while not on public roads; or
- e. For which a bodily injury liability bond or policy applies at the time of the "accident", but the amount paid for "bodily injury" under that bond or policy to an "insured" is not enough to pay the full amount the "insured" is legally entitled to recover as damages caused by the "accident".